TERMS AND CONDITIONS FOR THE USE OF THE "SAFARICOM M-PESA" APPLICATION

1. SCOPE

1.1. The following terms and conditions (the "**Terms and Conditions**") apply to the use of the "**Safaricom M-PESA**" mobile application (hereafter referred to as the "**Safaricom M-PESA App**" or the "**App**") and by using the App you will be deemed to have read, understood and accepted the Terms and Conditions.

1.2. These Terms and Conditions are applicable in addition to all other terms and conditions issued by Safaricom as published on the Safaricom website at www.safaricom.co.ke, online social platforms and any local daily newspapers.

2. THE APP

2.1. The Safaricom M-PESA App is a mobile application that enables customers to access various products and services offered by Safaricom Plc, including voice, data, short messaging service, the M-PESA service and other financial services offered by Safaricom or by third parties in collaboration with Safaricom including payments, credit, insurance, wealth management and several financial value-added services as well as customer support services through one central location.

2.2. The App is available for Safaricom PrePay and Postpay subscribers who may download it using their android and/or Apple iOS devices.

2.3. Safaricom reserves the right to offer or decline access to the App to non-Safaricom customers for technical or operational reasons.

2.4. Safaricom reserves the right to offer or access to certain functionalities of the App to Customers who may not have signed up to the products and services offered under those functionalities.

2.5. The App will be available for use from 1st November 2024 ("**Commencement Date**").

3. HOW TO ACCESS THE APP

3.1. To access the App, an eligible customer may follow the following steps:

3.1.1. Buy or be a user of an android or Apple iOS enabled handset or tablet;

3.1.2. Download the App, from the Google PlayStore or Appstore;

3.1.3. Install the App on your handset or tablet (mobile data charges may apply for installation of the App); and

3.1.4. Once you have installed the App, launch the App by entering your secret personal identification number (PIN).

3.2. We may require certain authorizations from you prior to allowing you to access various products and services under the App. Most mobile devices provide you with information about these permissions.

3.3. You acknowledge that your refusal to provide these authorizations on your device may entitle us to deny you access to the App or to specific products and services.

4. FEATURES AND FUNCTIONALITIES OF THE APP

4.1. The App shall contain different features and functionalities to enable you to enjoy different products, services and solutions offered by Safaricom and by third parties with whom Safaricom has partnered.

4.2. The App offers additional services which may include Value Added Services (VAS), PUK, tariffs, Know Your Customer (KYC) requirements, back up services, usage calculator, Frequently Asked Questions (FAQs) and Safaricom Cloud access.

4.3. We may provide you with other Safaricom products and services which may include:

4.3.1. information on Safaricom promotions, products and tariffs;

4.3.2. Social network support which includes a link to all Safaricom call centres, social media platforms and other available alternative channels;

4.3.3. Payment services which include M-PESA Merchant services, M-PESA Agency services, Know Your Customer ("KYC") verifications, agent locations, pay bill numbers, set limits and notifications, reversal requests and a link to Safaricom online shop; and

4.3.4. Customer care information and services which includes information on raising and tracking tickets, call center contract, E-Gain chat, web self-care, feedback link, retail shop and care desk locations via map and text.

4.4. We reserve the right to vary the features and functionalities of the App at our sole discretion.

4.5. We may modify the appearance of the various features and functionalities at our sole discretion.

4.6. You recognize that certain products and services offered on the App are offered by third parties. If a particular service or product is offered by a third party or a legal relationship is otherwise created between you and the third party, Safaricom shall not be liable to you in respect of any losses, claims or damages arising from your use of the services and products offered by such third party.

5. INTELLECTUAL PROPERTY

5.1. All content included in or made available through the App, such as text, graphics, logos, button icons, images, audio clips, digital downloads, data compilations, and software is the property of Safaricom or its partners and protected by copyright laws.

5.2. All Safaricom trademarks, graphics, logos, page headers, button icons, scripts, and service names included in or made available through the App are trademarks or trade dress of Safaricom. They may not be used in connection with any product or service that is not Safaricom's, in any manner that is likely to cause confusion among customers, or in any manner that disparages or discredits Safaricom. All other trademarks not owned by Safaricom that appear in the App are the property of their respective owners, who may or may not be affiliated with, connected to, or sponsored by Safaricom.

5.3. Subject to your compliance with these Terms and Conditions, Safaricom and/or or its partners grant you a limited, non-exclusive, non-transferable, non-sublicensable license to access and make personal and non-commercial use of the App. This license does not include any resale or commercial use of the App, or its contents; any collection and use of any product listings, descriptions, or prices; any derivative use of the App or its contents; any downloading, copying, or other use of account information for the benefit of any third party; or any use of data mining, robots, or similar data gathering and extraction tools.

5.4. All rights not expressly granted to you in these Terms and Conditions are reserved and retained by Safaricom and/or its licensors, suppliers, publishers, rightsholders, or other partners. No Safaricom service, nor any part of the App, may be reproduced, duplicated, copied, sold, resold, visited, or otherwise exploited for any commercial purpose without express written consent of Safaricom.

5.5. You may not frame or utilize framing techniques to enclose any trademark, logo, or other proprietary information (including images, text, page layout, or form) of Safaricom without express written consent. You may not use any meta tags or any other "hidden text" utilizing Safaricom's name or trademarks without the express written consent of Safaricom. You may use the App only as permitted by law. The licenses granted by Safaricom terminate if you do not comply with these Terms and Conditions.

6. YOUR ACCOUNT

6.1. We may require you to input further information before you can access or launch the App to confirm (authenticate) that you are a registered user of Safaricom services. Other means of authentication may include one-time password (OTP), start keys, security questions or secret codes. Any additional authentication method we may use will be applied in addition to your unique PIN.

6.2. You will be requested to accept these Terms and Conditions and our privacy policy in order to enjoy access to the various products and services on the App.

6.3. You are responsible for maintaining the confidentiality of your account and password and for restricting access to your account, and you agree to accept responsibility for all activities that occur under your account or password.

6.4. DO NOT SHARE YOUR PIN or AUTHENTICATION CODE WITH ANY PERSON.

7. DISCLAIMER OF WARRANTIES AND LIMITATION OF LIABILITY

7.1. The App and all information, content, materials, products (including software) and other services included on or otherwise made available to you through the App are provided by Safaricom on an "as is" and "as available" basis, unless otherwise specified in writing.

7.2. Safaricom makes no representations or warranties of any kind, express or implied, as to the operation of the App, or the information, content, materials, products (including software) or other services included on or otherwise made available to you through the App, unless otherwise specified in writing. you expressly agree that your use of the App is at your sole risk.

7.3. To the full extent permissible by law, Safaricom disclaims all warranties, express or implied, including, but not limited to, implied warranties of merchantability and fitness for a particular purpose. Safaricom does not warrant that the App, information, content, materials, products (including software) or other services included on or otherwise made available to you through the App, Safaricom's servers or electronic communications sent from Safaricom are free of viruses or other harmful components.

7.4. To the full extent permissible by law, Safaricom will not be liable for any damages of any kind arising from the use of the App, or from any information, content, materials, products (including software) or other services included on or otherwise made available to you through the App, including, but not limited to direct, indirect, incidental, punitive, and consequential damages, unless otherwise specified in writing.

8. USE OF THE APP

8.1. You may use the App solely for purposes of enabling you to access Safaricom products and services as well as other third-party services availed on the App. You may not incorporate any portion of the App into other programs or compile any portion of it in combination with other programs, or otherwise copy (except to exercise rights granted in this section), modify, create derivative works of, distribute, assign any rights to, or license the App in whole or in part. All software used in the App is the property of Safaricom or its software suppliers and is protected by copyright laws.

8.2. You must:

8.2.1. not use the App in any unlawful manner, for any unlawful purpose, or in any manner inconsistent with these Terms ad Conditions, or act fraudulently or maliciously, for example, by hacking into or inserting malicious code, such as viruses, or harmful data, into the App;

8.2.2. not infringe our intellectual property rights or those of any third party in relation to your use of the App;

8.2.3. not transmit any material that is defamatory, offensive or otherwise objectionable in relation to your use of the App;

8.2.4. not use the App in a way that could damage, disable, overburden, impair or compromise our systems or security or interfere with other users; and

8.2.5. not collect or harvest any information or data from the App or our systems or attempt to decipher any transmissions to or from the servers running any service.

9. GENERAL TERMS

9.1. When you use the App, you may also be using the services of one or more third parties. Your use of these third-party services may be subject to the separate policies, terms of use, and fees of these third parties.

9.2. You may not reverse engineer, decompile or disassemble, tamper with, or bypass any security associated with the App, whether in whole or in part.

9.3. We may offer automatic or manual updates to the App at any time and without notice to you.

9.4. The ways in which you can use the App may also be controlled by the Playstore and Appstore rules and policies. You undertake to comply with these riles and policies.

9.5. We are giving you personally the right to use the App as set out above. You may not transfer the App to someone else, whether for money, for anything else or for free. If you sell any device on which the App is installed, you must remove the App from it.

9.6. We may need to change these terms to reflect changes in law or best practice or to deal with additional features which we introduce or for other commercial reasons. Your continued use of the App after the coming into effect of such changes shall constitute your acceptance of the updated Terms and Conditions

9.7. From time to time, we may automatically update the App to improve performance, enhance functionality, reflect changes to the operating system or address security issues. Alternatively, we may ask you to update the App for these reasons. If you choose not to install such updates or if you opt out of automatic updates you may not be able to continue using the App.

9.8. The App may contain links to other independent websites which are not provided by us. Such independent sites are not under our control, and we are not responsible for and have not checked and approved their content or their privacy policies (if any). You will need to make your own independent judgement about whether to use any such independent sites, including whether to buy any products or services offered by them.

9.9. We may transfer our rights and obligations under these terms to another organisation. We will always tell you in writing if this happens and we will ensure that the transfer will not affect your rights under the contract.

10. PERSONAL INFORMATION

10.1. "**Personal Information**" means personal identifiable information as prescribed in the Data Protection Act, 2019 which includes but is not limited to name, address, phone number, identification number, location data.

10.2. We are required by law to collect certain personal information and are legally obligated to deny you the service if such information is not availed. Apart from the legal obligation mentioned above, we also need to collect your Personal Information for quality service delivery. Please note that without such information we may not be able to provide quality service.

10.3. We are committed to respecting and protecting the privacy of the information we collect from you. Our privacy statement, as updated from time to time, explains how we treat your personal information, who we share your information with, and measures taken protect your privacy when you use the App. This can be found on Safaricom's Data Privacy Statement published at https://www.safaricom.co.ke/dataprivacystatement/. If unable to access the link or the website, please reach us on any of our customer care channels to receive a copy.

10.4. You hereby irrevocably authorize Safaricom to disclose, receive, record or utilize any or all your personal information or information or data relating to your use of the App:

10.4.1. to and from any local or international law enforcement or competent regulatory or governmental agencies so as to assist in the prevention, detection, investigation or prosecution of criminal activities or fraud;

10.4.2. to and from their service providers, dealers, agents or any other company that may be or become its subsidiary or holding company for reasonable commercial purposes relating to the App;

10.4.3. for reasonable commercial purposes connected to your use of the App, such as marketing and research related activities;

10.4.4. in business practices including but not limited to quality control, training and ensuring effective systems operation; and

10.4.5. for any other lawful commercial purpose.